

23STCV17738 23STCV17738

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-15

Source URL:

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Kristin Jacobson v. Disney Human Resources Services Co., LLC, et al.

MOTION TO TRANSFER VENUE

MOVING PARTY: Defendants Disney Human Resources Services Co., LLC; The Walt Disney Company; Disney Worldwide Services, Inc.; and Walt Disney Parks and Resorts U.S., Inc.

RESPONDING PARTY(S): Plaintiff Kristin Jacobson

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment case. Plaintiff Kristin Jacobson (Plaintiff) alleges her employers, defendants Disney Human Resources Services Co., LLC; The Walt Disney Company; Disney Worldwide Services, Inc.; and Walt Disney Parks and Resorts U.S., Inc. (collectively, Defendants), wrongfully terminated her employment based on her disability. Plaintiff asserts nine causes of action, six of those under FEHA.

On February 16, 2024, this Court denied Defendants original motion to transfer venue under Code of Civil Procedure, section 396(b). (See 2/16/24 Final Ruling.)

Defendants now move to transfer this action to Orange County pursuant to Code of Civil Procedure, section 397(c). Plaintiff opposed.

TENTATIVE RULING:

Defendants' Motion to Transfer Venue to Orange County is DENIED.

Plaintiff is ordered to give notice, unless waived.

DISCUSSION:

Motion to Transfer Venue

I. Legal Standard

“Venue is determined based on the complaint on file at the time the motion to change venue is made.” (Brown v. Superior Court of Alameda County (1984) 37 Cal.3d 477, 482.) If an action has been filed in a court other than the court designated as the proper court by statute, a defendant may, within the time allowed to respond to the Complaint, move to transfer the action to the proper court. (Code Civ. Proc. § 396b subd. (a).) Transfer is mandatory if the action was not filed in the proper court. (Ibid.) If venue is proper in more than one court, the plaintiff may choose where to file the action. (Battaglia Enterprises, Inc. v. Superior Court (2013) 215 Cal.App.4th 309, 313.) A plaintiff’s choice of venue is presumptively correct, and the defendant bears the burden to demonstrate that the choice of venue is not proper on any grounds. (Fontaine v. Superior Court (2009) 175 Cal.App.4th 830, 836.)

II. Objections to Evidence

Each party has submitted objections to evidence. This Court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication (CCP § 437c (q)) or a special motion to strike (CCP § 425.16 (b)(2)); see also Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is well aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

III. Analysis

Defendants move for discretionary relief to transfer the case to Orange County under Code of Civil Procedure, section 397(c) which allows for the Court to order a transfer “[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.”

“It is well settled that a motion for change of venue grounded upon the convenience of witnesses rests largely in the discretion of the trial court.” (Wrin v. Ohlandt (1931) 213 Cal.158, 159.) “There is no time fixed by statute when an action may be transferred for trial because of convenience of witnesses or to promote justice. The courts have said that it must be made within a reasonable time after the case is at issue on the facts, the determination of which rests largely in the discretion of the trial court.” (Cooney v. Cooney (1944) 25 Cal.2d 202, 208.)

However, when a party moves to transfer venue for the convenience of witnesses, the party must provide affidavits setting forth “the name of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient.” (Peiser v. Mettler (1958) 50 Cal.2d 594, 607.) “Convenience of witnesses” may be shown by the fact that the residence of all witnesses is in the county to which the transfer is requested. (Richfield Hotel Management, Inc. v. Superior Court (1994) 22 Cal.App.4th 222, 227.)

The burden is on the moving party to establish facts justifying the transfer. (Mission Imports, Inc. v. Superior Court (1982) 31 Cal.3d 921, 928-929.) However, “the rule is well settled that the convenience of employees of a party to an action need not be consulted in passing upon a motion for change of venue.” (Dillman v. Superior Court of Los Angeles County (1962) 205 Cal.App.2d 769, 773-774.) Where a party moves to transfer venue based on the convenience of witnesses, it must submit affidavits showing the names of each witness expected to testify for both parties, the substance of their expected testimony, whether the witness has been deposed or given a statement, the reasons why it would be inconvenient for the witnesses to appear, and the reasons why the ends of justice would be promoted by transfer to a different county. (Juneau v. Juneau (1941) 45 Cal.App.2d 14, 16; Edwards v. Pierson (1957) 156 Cal.App.2d 72, 75 [“The burden rests upon one who seeks a change of venue . . . to prove that both the convenience of witnesses and the ends of justice will be promoted thereby . . .

This he must do through affidavits which contain something more than generalities and conclusions”]; Mission Imports, supra, 31 Cal.3d at pp. 928-929 [moving party may submit declarations containing admissible evidence in support of the motion to transfer venue].)

Here, Defendants argue five employees reside in Orange County as well as an unnamed representative of Plaintiff’s union, United Food & Commercial Workers, Local 324, and Plaintiff’s therapist, Dr. Linda Schnaible. As discussed above, “the court may not consider the convenience of the parties or of their employees in passing upon the motion.” (Lieberman v. Superior Court (1987) 194 Cal.App.3d 396, 401.) Instead, Defendants must provide sufficient evidence that it would be inconvenient for the non-employee witnesses to appear in Los Angeles County. Further, a motion must identify the nonparty witness by name. (See Peiser v. Mettler, supra, 50 Cal.2d at p. 607.) The unnamed representative of Local 324 does not evidence a basis for relief.

As a result, this leaves the Court to solely consider the inconvenience this trial would have on Dr. Linda Schnaible (Dr. Schnaible). However, Defendants do not explain the reasons why the attendance of Dr. Schnaible would be inconvenient. Instead, Defendants merely state “Plaintiff’s therapist, Dr. Linda Schnaible, is located in Anaheim, California.” (Mot. at p. 14:27-28.) To be precise, Defendants believe Dr. Schnaible’s business is in Anaheim, California. There is no information as to the location of Dr. Schnaible’s current residence. Even assuming Dr. Schnaible’s current residence is in Anaheim, Defendants provide no evidence that Dr. Schnaible is in any way inconvenienced with the venue of this trial. Therefore, Defendants did not meet their burden to establish facts justifying the transfer to Orange County.

The Court is aware of the action’s substantial ties to Orange County and Plaintiff’s lack of witnesses in Los Angeles County. However, “the burden of making a sufficient showing is on the moving party, and he ‘must stand upon the strength of his showing rather than upon the weakness, if any, of the opposition.’” (Union Trust Life Ins. Co. v. Superior Court for Ventura County (1968) 259 Cal.App.2d 23, 28, internal citations omitted.) Defendants have not met their burden.

Accordingly, Defendants’ Motion to Transfer Venue to Orange County is DENIED.

IV. Attorney’s Fees

Code of Civil Procedure section 396(b) provides the Court with discretion to award attorneys’ fees to the prevailing party on a motion to transfer. It states, in relevant part:

“In its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney’s fees incurred in making or resisting the motion to transfer whether or not that party is otherwise entitled to recover his or her costs of action. In determining whether that order for expenses and fees shall be made, the court shall take into consideration (1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known. As between the party and his or her attorney, those expenses and fees shall be the personal liability of the attorney not chargeable to the party. Sanctions shall not be imposed pursuant to this subdivision except on notice contained in a party’s papers, or on the court’s own noticed motion, and after opportunity to be heard.”

(Code Civ. Proc. § 396b, subd. (b), emphasis added.)

Accordingly, the Court declines to award any expenses or attorney’s fees since neither party has formally or properly requested sanctions.

IT IS SO ORDERED.

Dated: July 15, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.